

is in the best interest of the minor, if the voir dire process is completed to the Court's satisfaction.

The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at the hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Petitioner and minor are required to appear. Counsel will voir dire the Petitioner about the terms of the settlement, any other potential sources to increase the settlement amount, whether the minor has fully recovered and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. If satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Orders and schedule a hearing for review regarding confirmation of deposit.

CROWELL VS. DAY

CASE NUMBER: 24CH-0204259

Tentative Ruling on Application for Judgment Debtor Examination: Applicant Justin Day, proceeding in pro per, seeks examination of judgment debtor James Dean Crowell. CCP § 708.110 requires personal service to be made on the judgment debtor at least thirty calendar days prior to the examination. Petitioner filed a Proof of Personal Service on July 1, 2026. It states that personal service was accomplished on June 30, 2026 – which is not 30 calendar days prior to today's hearing date. The Court also notes that the Proof of Service for the Memorandum of Costs filed on March 30, 2026 is invalid, because it was served by Petitioner. Service must be made by a nonparty to the case. Without timely service on the judgment debtor, the matter is dropped from calendar.

DURA CRANE, INC. VS. J. L. AMONETT CO.

CASE NUMBER: 25CVG-00038

Tentative Ruling on Motion to Recover Reasonable Attorney Fees: Plaintiff Dura Crane, Inc. moves for an award of reasonable attorneys' fees following entry of judgment in which the Court found in favor of Plaintiff. Although the motion was properly noticed, Defendant Amonett Co. did not oppose the motion.

As the prevailing party, Plaintiff moves for attorney's fees based on the parties' underlying contract. "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided." CCP § 1021. Allowable costs include "Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law." CCP § 1033.5(a)(10).

(a) In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs.

Where a contract provides for attorney's fees, as set forth above, that provision shall be construed as applying to the entire contract, unless each party was represented by counsel in the negotiation and execution of the contract, and the fact of that representation is specified in the contract.

Reasonable attorney's fees shall be fixed by the court, and shall be an element of the costs of suit.
Civ. Code § 1717(a)

Section 7 of the contract states that "[i]f the account is referred to collection the Lessee agrees to pay collection costs and attorney's fees." This case was filed as a breach of contract seeking, among other causes of action, enforcement and collection of payment for the use of rental equipment pursuant to the terms of the contract. Therefore, Section 7 of the contract would apply to this matter. Additionally, in the judgment entered on March 6, 2026, the Court ordered that the judgment include attorneys' fees upon the filing of a motion.

The Court then turns to whether the requested attorneys' fees are reasonable. Plaintiff has provided evidence that Randall Nelson has been a practicing attorney for thirty-four years. The requested hourly rate averages \$413.02. This is reasonable given the length of time that counsel has been practicing. The Court has reviewed the billing records provide and it does not appear that any time spent was unreasonable.

The motion is **GRANTED**. The Court fixes attorneys' fees in this matter at \$4,264.50. Plaintiff provided a proposed Order that will be executed by the Court.

HANNAN VS. ALAMO RV PARK AND MOTEL, LLC, ET AL.
CASE NUMBER: 26CV-0209992

Tentative Ruling on Motion for Leave to file a Second Amended Complaint: Plaintiffs, Ralph Hannan and Renee Hannan, seek leave to file a Second Amended Complaint. The amendments provide additional facts in support of 1) an alter ego theory of liability against Defendant Gary Trolesi; 2) Defendant Alamo RV Park and Motel, LLC ("Alamo"), Gary Trolesi, and Vicki Wilson's knowledge of the subject animal; 3) Defendant Alamo, Gary Trolesi, and Vicki Wilson's negligent supervision, training, control, and retention causes of action; and 4) punitive damages. The Motion is unopposed.

Code of Civil Procedure § 473(a)(1) permits any pleading to be amended in furtherance of justice and on any terms as may be proper, after notice to the adverse party. The Court's discretion in this regard will usually be exercised liberally to permit amendment. *Nestle v. Santa Monica* (1972) 6 Cal. 3d 920, 939. Leave to amend should be liberally granted so long as there is no statute of limitations issue or prejudice to the opposing party. *Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 240.

Plaintiffs seek to add these supporting facts pursuant to an agreement between Plaintiffs and Defendants Alamo, Gary Trolesi, and Vicki Wilson reached during meet and confer communications to negate the filing of a demurrer to the First Amended Complaint by Defendants. It does not appear any party will be prejudiced by the amendment. The Motion is **GRANTED**. A proposed order has been lodged and will be executed. Plaintiffs are granted ten days leave to file the Second Amended Complaint.